YOUR FIRST-TIME BUYER ROADMAP

The key steps, forms, and deadlines from first tour to keys, Massachusetts edition

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Start here

Buying in Massachusetts works differently than most people expect:

- Typical practice, confirm with your attorney: there is no required general seller condition disclosure form (lead paint in pre-1978 homes is the main exception).
- You sign two contracts instead of one.
- Typical practice, confirm with your attorney: attorneys run the closing.

If nobody walks you through it, the deadlines sneak up fast.

This roadmap covers the decision to buy a first home in Newton, whether you're touring next weekend or just starting to save. It puts the key steps in order, flags the forms you'll see, and gives you a checklist for each stage.

Read it once now, then come back to the stage you're in.

Stage 1: Before you tour

- [ ] Talk to a lender and get a pre-approval letter before you start touring seriously.
- [ ] If you might use a first-time buyer or assistance program, take a CHAPA-approved homebuyer education course. Many lenders and programs ask for the certificate. Ask your lender how long it stays valid.
- [ ] Expect to sign a written buyer agreement before touring homes with any agent, under NAR MLS policy. Read what services it covers and how compensation is defined. Visiting an open house on your own doesn't require one.
- [ ] At your first personal meeting about a specific property, a Massachusetts agent gives you the Massachusetts Mandatory Licensee-Consumer Relationship Disclosure. It explains the types of agency relationships, such as seller's agent, buyer's agent, and facilitator, so you know whom the agent represents.
- [ ] Choose a real estate attorney now, not after your offer is accepted.
- [ ] Choose a licensed home inspector. Lead testing is usually done by a separate licensed lead inspector.
- [ ] Write down and rank your non-negotiables: commute, outdoor space, parking, layout, and the condition you're willing to take on.

Jared's take

Most first-time buyers pick their inspector and attorney in a scramble after the offer is accepted. **Do it now**. Typical practice, confirm with your attorney: the inspection window can be only days, so book early. The people you want book up.

Stage 2: The Massachusetts process, step by step

1. Offer to Purchase.

You sign an offer with a deposit. Ask your attorney whether a signed offer would bind you before the purchase and sale agreement is signed, and what your offer commits you to. Read every line before you sign. Before you sign your first written contract (usually the Offer to Purchase), you and the seller both sign the Massachusetts Mandatory Residential Home Inspection Disclosure.

2. Inspection period.

Your offer sets the deadline. Typical practice, confirm with your attorney: about a week to 10 days. Book the general inspection plus any add-ons: radon, pests, sewer line.

3. Lead paint window (homes built before 1978).

In Massachusetts you get 10 days, unless you and the seller agree in writing to a different period. Within that window, you can have a lead inspection or risk assessment done before you sign the purchase and sale, if you choose to. You can also waive it in writing. The 10-day window doesn't apply to foreclosure sales. The seller must disclose any known lead hazards. You'll receive the state's Property Transfer Lead Paint Notification before you sign the purchase and sale agreement. You and the seller will both sign the Property Transfer Notification Certification, which confirms you received the notice. Any waiver of the 10-day lead inspection must be in writing, so ask your attorney how it applies to your deal.

4. Purchase and Sale Agreement (P&S).

The longer contract that replaces the offer. Your offer sets the date to sign it. Have your attorney review and negotiate it. Typical practice, confirm with your attorney: inspections are completed before the P&S is signed, so inspection findings get negotiated before you sign. Ask your attorney what deposit is due at signing.

5. Mortgage commitment date.

The P&S sets a date by which your lender must commit. Put it on your calendar, and ask your attorney what happens to your deposit if it slips. Federal rules set two lender deadlines: your lender must give you a Loan Estimate within 3 business days of receiving your

mortgage application, and you must receive the Closing Disclosure at least 3 business days before closing. Compare the two line by line.

6. Seller's smoke and CO certificate.

The seller gets a certificate of compliance from the local fire department before the sale. Your attorney should confirm it's handled.

7. Condo?

Your attorney will need a 6(d) certificate from the condo trustees showing no unpaid common charges.

8. Final walk-through, shortly before closing.

Confirm the home's condition and that agreed repairs are done.

9. Closing.

A Massachusetts attorney must be substantively involved. Typical practice, confirm with your attorney: on a financed purchase, the closing attorney represents your lender. Your own attorney is there for you.

Stage 3: Your inspection rights (since October 15, 2025)

Under the state regulation 760 CMR 74.00:

- Under 760 CMR 74.00 (effective October 15, 2025), a seller generally may not make acceptance of your offer depend on your waiving or limiting a home inspection, unless an exemption applies.
- The regulation has exemptions, including foreclosure and auction sales, certain family transfers, and certain new-construction sales. Ask your attorney whether your sale is covered.
- Ask your attorney how the rule applies to your contract terms.
- The state's disclosure form explains your inspection rights. Read it before you sign.

Jared's take

Typical practice, confirm with your attorney: without a general seller condition disclosure, your inspection is your best look at the house. Under Massachusetts law, your agent must tell you about known material facts that could affect your decision to buy. Ask your questions in writing and confirm the answers with your attorney. Some buyers weigh the inspection

contingency against offer strength. Ask your attorney and me about your options before you write.

Stage 4: Old-house inspection checklist

Older homes have character, and they come with specific things to check. **Ask your inspector about:**

- ☐ Lead paint (a separate licensed lead inspector; usually not part of a standard inspection)
- ☐ Electrical: older wiring types, panel capacity, ungrounded outlets
- ☐ Heating system age and fuel type, and any sign of an old oil tank, above or below ground
- ☐ Water in the basement, grading, and foundation cracks
- ☐ Roof and chimney condition
- ☐ Pipe or duct insulation that may contain asbestos
- ☐ Radon test
- ☐ Sewer line camera scope from the house to the street
- ☐ Windows: operation, rot, painted-shut sashes
- ☐ Permit history for past renovations (check with the City of Newton or ask your attorney)

If you're buying a condo

- ☐ Master deed, trust, bylaws, and rules (rentals, pets, parking, renovations)
- ☐ Current budget and reserve fund balance
- ☐ Planned or recent special assessments
- ☐ Master insurance policy: what it covers and what your unit policy must cover
- ☐ Recent trustee meeting minutes (upcoming projects show up here first)
- ☐ Clean 6(d) certificate before closing

Stage 5: Newton costs to plan for

Property tax

- ❖ Newton FY2026 residential rate: $9.69 per $1,000 of assessed value.
- ❖ Newton sets its FY2027 rate later this fall; check newtonma.gov for the latest rate.

- How to estimate: assessed value ÷ 1,000 × rate.
- Example: a home assessed at $800,000 → 800 × $9.69 = $7,752 per year, before any exemptions or surcharges.
- Assessed value isn't the same as purchase price.

Costs to get quotes for

Ask your lender, attorney, and inspectors for a number on each of these before you make an offer:

- [ ] Home inspection
- [ ] Lead inspection (pre-1978 homes)
- [ ] Other tests: radon, sewer scope, pests
- [ ] Your attorney
- [ ] Lender closing costs (from your Loan Estimate)
- [ ] Owner's title insurance (optional; ask your attorney)
- [ ] Homeowners or condo unit insurance, per year
- [ ] Condo fee, if any, per month
- [ ] Property tax, per year
- [ ] Moving and first repairs

Questions to ask (continued on next page)

Your attorney

- [ ] Who do you represent at closing?
- [ ] What happens to my deposit if the mortgage commitment is late?
- [ ] Is this sale exempt from the inspection-waiver rule?

Your inspector

- ☐ Are you licensed in Massachusetts, and can I attend?
- ☐ What's outside the scope of your inspection?

The listing agent (ask in writing)

- ☐ Any known issues, past water problems, or open permits?
- ☐ Is there a lead inspection report, Letter of Compliance, or Letter of Interim Control?

Your next step

Contact me with the stage of buying you're in and I can assist you with all the next steps; even if you are just starting. If you send me an area, I can pull current MLS PIN data for it, with the date pulled and the source noted.

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Sources

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- "Massachusetts Bans Home Inspection Waivers…Well, Sort Of," Oct. 17, 2025: seller limits, the disclosure form, voluntary waivers, exemptions (massrealestatelawblog.com)
- Massachusetts Department of Public Health, Childhood Lead Poisoning Prevention Program, Property Transfer Lead Paint Notification, the Property Transfer Notification Certification (including the seller's lead disclosure), and the Information for Real Estate Agents fact sheet: the pre-1978 rule; 10 days for a lead inspection or risk assessment, unless buyer and seller agree in writing to a different period, and waivable in writing; the seller's disclosure of known lead hazards and any lead reports or letters of compliance (mass.gov)
- U.S. Environmental Protection Agency, Lead-Based Paint Disclosure Rule, 40 CFR 745 Subpart F: 745.107 (disclose known lead-based paint and hazards; provide available records and reports), 745.110 (a 10-day opportunity for a risk assessment or inspection unless the parties agree in writing to a different period; the purchaser may waive it in writing), and 745.101(a) (sales at foreclosure are exempt). Retrieved 2026-10-18 through law.cornell.edu; official text at ecfr.gov
- Massachusetts Department of Fire Services, Consumer Guide to Smoke Detectors When Selling a Home: certificate of compliance under M.G.L. c.148 §26F and §26F½ (mass.gov)
- City of Newton Assessing Department, Tax Rate (Current and Prior Year): FY2026 residential rate $9.69 per $1,000; the FY2027 rate is set later in fall 2026 (the FY2026 classification hearing packet is dated November 17, 2025) (newtonma.gov)
- National Association of REALTORS®, Consumer Guide to Written Buyer Agreements: in effect since August 17, 2024; signed before touring in person or virtually; not needed to visit an open house on your own (nar.realtor)
- Citizens' Housing and Planning Association, homebuyer education listings: certificates used for MassHousing, MHP's ONE Mortgage, and down payment and closing cost assistance (chapa.org)
Massachusetts Purchase and Sale Agreement Basics (undated): the P&S supersedes the offer (massrealestatelawblog.com)
- Massachusetts Real Estate Law Blog, condo fees: the trustees' 6(d) certificate and lenders requiring a clean one (massrealestatelawblog.com)

- Stewart Title compliance bulletin MU2011006 on Real Estate Bar Association v. National Real Estate Information Services, 459 Mass. 512 (2011): attorney's substantive participation in closings (stewart.com)
- "Why Massachusetts Closings Require a Real Estate Attorney," 2026: the closing attorney on a financed purchase represents the lender (bmnboston.com)
- Board of Registration of Real Estate Brokers and Salespersons, Massachusetts Mandatory Licensee-Consumer Relationship Disclosure, G.L. c.112 §87AAA (malegislature.gov): explains seller's agent, buyer's agent, facilitator, and other relationships. Board guidance RE01R06: Seller Agency (https://www.mass.gov/service-details/re01r06-seller-agency) and RE51R06: Facilitator (https://www.mass.gov/info-details/re51r06-facilitator), titles and URLs confirmed through search results on 2026-10-24; page text not retrieved.
- Consumer Financial Protection Bureau, "What is a Loan Estimate?": the lender must provide it within three business days of receiving your application; "What is a Closing Disclosure?": the lender must give it to you at least three business days before you close (consumerfinance.gov)

Massachusetts Real Estate Law Blog, "Is 'Buyer Beware' Alive and Well? An Overview of Massachusetts Real Estate Disclosure Law" (June 21, 2011; checked 2026-10-24): brokers must disclose known material facts to buyers, and a private seller generally has no duty to volunteer facts (massrealestatelawblog.com). Older law-firm blog; confirm with your attorney. Massachusetts consumer protection statute, G.L. c.93A (malegislature.gov).

Disclaimer

Jared Cohen, REALTOR® | eXp Realty. Licensed real estate salesperson in Massachusetts.
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